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Section A - Solicitation/Contract Form

Virtual Machine Development for NATO Courses

Product Service Code: U012

1. This requirement is set-aside exclusively for small business concerns under North American Industry Classification System (NAICS) code is 611710: Educational Support Services. The size standard established by the Small Business Administration is \$24 Million. The Contracting Officer will verify size standard before award of the contract. The scope of work is to provide Naval Postgraduate School (NPS) with Virtual Machine (VM) development services.
2. Contractors shall be registered at <https://www.sam.gov> with the NAICS code of 611710 prior to submission of the quotation.
3. The Government intends to award one commercial, firm-fixed-price (FFP) contract for the effort as outlined in the Performance Work Statement (PWS). The award will be made on a competitive best value basis under FAR subpart 13.5: Simplified Procedures for Certain Commercial Products and Commercial Services, utilizing the trade-off methodology. Since this acquisition is for a commercial service, the policies and procedures in FAR part 12: Acquisition of Commercial Products and Commercial Services are applicable to this purchase.
4. This solicitation will result in a contract consisting of one 12-month base period of performance followed by four 12-month option periods. Furthermore, this will contain the clause FAR 52.217-8 – Option to Extend Services, which would allow the Government to extend the period of performance under the contract up to an additional six months.
5. The instructions for submission of questions and quotes, including their deadlines, are found in Section L of this solicitation.
6. It is the contractor's responsibility to ensure all electronic media are readable by the Government.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	VIRTUAL MACHINE (VM) SUPPORT SERVICES Includes activation of the VMs, development of instructional and student guides, course development, and course instruction support in accordance with the Performance Work Statement (PWS) in Section C. An itemized breakdown of this CLIN may be found in Attachment 1: "Pricing". Pricing Arrangement: Firm Fixed Price	1	Group		
0002	TRAVEL In accordance with Section 10.0: "Travel" of the PWS in Section C. Pricing Arrangement: Firm Fixed Price	1	Group		
0003	CONTRACT DATA REQUIREMENTS LIST (CDRL) In accordance with CDRLs A001, A002, A003, A004, A005, A006 in Section J. This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1001	VIRTUAL MACHINE (VM) SUPPORT SERVICES Includes activation of the VMs and course instruction support in accordance with the Performance Work Statement (PWS) in Section C. An itemized breakdown of this CLIN may be found in Attachment 1: "Pricing". Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 1002	TRAVEL In accordance with Section 10.0: "Travel" of the PWS in Section C. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 1003	CONTRACT DATA REQUIREMENTS LIST (CDRL) In accordance with CDRLs A001, A002, A003, A004, A005, A006 in Section J. This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 2001	VIRTUAL MACHINE (VM) SUPPORT SERVICES Includes activation of the VMs and course instruction support in accordance with the Performance Work Statement (PWS) in Section C. An itemized breakdown of this CLIN may be found in Attachment 1: "Pricing". Pricing Arrangement: Firm Fixed Price	1	Group		
	TRAVEL In accordance with Section 10.0: "Travel" of the PWS in		Group		

Option Line Item 2002	Section C. Pricing Arrangement: Firm Fixed Price	1			
Option Line Item 2003	CONTRACT DATA REQUIREMENTS LIST (CDRL) In accordance with CDRLs A001, A002, A003, A004, A005, A006 in Section J. This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 3001	VIRTUAL MACHINE (VM) SUPPORT SERVICES Includes activation of the VMs and course instruction support in accordance with the Performance Work Statement (PWS) in Section C. An itemized breakdown of this CLIN may be found in Attachment 1: "Pricing". Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 3002	TRAVEL In accordance with Section 10.0: "Travel" of the PWS in Section C. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 3003	CONTRACT DATA REQUIREMENTS LIST (CDRL) In accordance with CDRLs A001, A002, A003, A004, A005, A006 in Section J. This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 4001	VIRTUAL MACHINE (VM) SUPPORT SERVICES Includes activation of the VMs and course instruction support in accordance with the Performance Work Statement (PWS) in Section C. An itemized breakdown of this CLIN may be found in Attachment 1: "Pricing". Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 4002	TRAVEL In accordance with Section 10.0: "Travel" of the PWS in Section C. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 4003	CONTRACT DATA REQUIREMENTS LIST (CDRL) In accordance with CDRLs A001, A002, A003, A004, A005, A006 in Section J. This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price	1	Lot		

Section C - Description/Specifications/Statement of Work

Performance Work Statement

Virtual Environment for Teaching NATO Classes

Energy Academic Group

Naval Postgraduate School

1.0 Background/Introduction:

The Naval Postgraduate School's (NPS) collaboration with the Academics Directorate (ACAD) of the North Atlantic Treaty Organization (NATO) School Oberammergau (NSO) focuses on delivering advanced Cyber Security education and training to NATO personnel. NPS teaches multiple Cyber Security courses for NATO, combining academic rigor with operational relevance. Currently, the theoretical components of each course are supported by laboratory exercises designed to reinforce and apply the concepts taught in class. However, as agreed upon by faculty, NATO staff, and students, the existing laboratory exercises are inefficient and insufficient in providing a robust and interactive learning environment. The current infrastructure limits students' ability to use analytical skills to assess diverse cyber scenarios and engage in hands-on problem solving.

To address these challenges, the program seeks the services of a qualified contractor to design and deploy a hands-on training environment supported by virtual machines (VMs). These VMs will host customized training modules for the following cyber security courses--Network Security, Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, Machine Learning & Artificial Intelligence (ML&AI) for Cyber Applications, and Introduction to Machine Learning & Artificial Intelligence. This capability will provide NATO students with a solid understanding of the fundamentals of cyber security and how these concepts apply to real-world Department of Defense (DoD) and NATO mission challenges.

2.0 Scope:

The contractor's service is needed for course content compilation and customization, based on existing teaching material by building virtual machines, one for each student and faculty member. Access to the VM will be completely browser based for both students and instructors, focusing on the workflows that instructors and students need with an option to gather metrics to allow faculty to determine the progress of the students as they learn the material. The contractor will also deliver instructional guides for the following courses taught at the NATO School Oberammergau (NSO) in Oberammergau, Germany: Network Security, Cyber Security Incident Response and Recovery (CSIRR), Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, ML&AI for Cyber Applications, and Introduction to ML & AI.

3.0 Tasks:

The contractor shall perform the following task(s) as follows:

3.1 Develop a VM environment that can be replicated and remotely accessed for instruction in the Network Traffic Analysis NATO course based on the requirements set by NPS. At a minimum the VM should integrate the following software tools: Elastic stack with netflow module, Elastiflow, mininet, Wireshark SiLK netflow, Splunk, ChefSpecial and Argus. This VM needs to be made available to students at the time the class is offered.

3.2 Develop a VM environment that can be replicated and remotely accessed for instruction in the Software Reverse Engineering NATO course based on the requirements set by NPS. At a minimum the VM should integrate the following software tools: Ghidra, commercial IDA Pro, and DRAKVUF sandbox. This VM needs to be made available to students at the time the class is offered.

3.3 Develop a VM environment as well as laboratory exercises that can be replicated and remotely accessed for instruction in the Mobile Applications NATO course based on the requirements set by NPS. Remote access to MacOS and Linux environments should be accommodated with a minimum of the following software tools supported: Xcode,

MobSF, docker, Android SDK, Android Studio, apktool, dex2jar, and drozer. This VM environment needs to be made available to students at the time the class is offered.

3.4 Deploy instructional and student guides for Network, Security, Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, ML&AI for Cyber Applications, and Introduction to ML & AI courses taught at the NATO School Oberammergau (NSO).

3.5 Export all VMs associated with the exercises in OVA format, to allow the government to instantiate the lab environment on different virtualization platforms, if necessary, to support the associated classes.

3.6 Provide qualified subject matter experts (SME) in the areas of Network Security, CSIRR, Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, ML&AI for cyber applications, and Introduction to ML & AI, to provide live technical support and troubleshooting during in-class resident weeks. 18 in-class resident weeks occur each year.

3.7 Provide eight-hour email SME response in support of the VM infrastructure during non-in-class weeks.

3.8 Make the VM environments available for students taking the Network Security, Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, ML&AI for Cyber Applications, and Introduction to ML & AI courses. This will include any update or revisions of the course material that will be needed following student or faculty feedback. The Contractor shall also develop laboratory exercises along with instructor guides and deploy the VM environment for students taking the Artificial Intelligence courses (Fundamentals to Artificial Intelligence, Machine Learning, and Machine Reasoning).

3.9 The Contractor shall maintain and update all laboratory environments and associated instructional materials developed under this contract to ensure they remain compatible with current course requirements, software versions, and NATO School instructional needs. Updates shall incorporate faculty and student feedback and shall be completed prior to the start of each course cycle.

3.10 The Contractor shall also provide the option to deploy qualified subject matter experts (SMEs) to travel and instruct in-person at NSO, if required by NPS or the NATO School, to ensure effective course delivery and technical support.

4.0 Deliverables:

The contractor shall be responsible for providing the following deliverables:

4.1 An environment and set of exercise material tailored to the course outline based on feedback and review of NPS faculty ready for deployment to NATO school students during scheduled classes.

4.2 Instructional and student guides for Network vulnerability, Big Data Analytics, CSIRR, Traffic Analysis, Reverse Engineering, and Mobile Apps courses taught for the NATO school.

4.3 Export of VMs associated with all NATO courses developed by the contractor in OVA format for archiving purposes.

4.4 Delivery of each of the following:

4.4.1 A virtual machine for each student in the class, plus one for each course instructor for demonstration purposes.

4.4.2 Delivery of a web-based user interface to allow each of the students to access their copy of the virtual environment.

4.4.3 Delivery of a web-based user interface to allow the instructor to access every copy of the virtual environment associated with the class.

4.5 Updated and validated laboratory environments for all NATO courses covered under this PWS, reflecting software, exercise, and instructional revisions made following each course cycle. Documentation of updates and version control shall be delivered to NPS along with confirmation of operational functionality.

4.6 Services of Subject Matter Experts (SMEs) to provide live technical support during in-class resident weeks, as well as technical support during non-in-class weeks.

4.7 The Contractor shall include, as a deliverable option, the provision of on-site instruction or technical support during NATO School classes if requested by NPS.

Performance Measurement - Quality Assurance Plan

Task	Deliverable that will be inspected	Acceptable Quality Level (AQL)	Method	Frequency
3.1	4.1: Environment and VM structure to teach the Traffic Analysis class See Contract Data Requirements List (CDRL) A001: VMs for Traffic Analysis Class, for all requirements pertaining to this deliverable.	VM environment needs to support a total of 110 students, it needs to be available 96% of the time and the material needs to be directly relevant to the course content	NPS will test the VM environment three weeks prior to the beginning of each class to ensure that it aligns with the course content and objectives	Continuously through the period of performance
3.2	4.1: Environment and VM structure to teach the Reverse Engineering class See CDRL A002 - VMs for SWE Class.	VM environment needs to support a total of 40 students, it needs to be available 96% of the time and the material needs to be directly relevant to the course content	NPS will test the VM environment three weeks prior to the beginning of each class to ensure that it aligns with the course content and objectives	Continuously throughout the period of performance
3.3	4.1: Environment and VM structure to teach Mobile Apps class See CDRL A003 - VMs for Mobile Apps Class.	VM environment needs to support a total of 40 students, it needs to be available 96% of the time and the material needs to be directly relevant to the course content	NPS will test the VM environment three weeks prior to the beginning of each class to ensure that it aligns with the course content and objectives	Continuously throughout the period of performance
3.4	4.2: Deployment of instructional and student guides for Network Vulnerability, ML&AI, CSIRR, Traffic Analysis, Reverse Engineering, and Mobile Apps courses	Student guides can be between 2 and 3 pages while instructional guides need to be more detailed and walk the instructors through the laboratory exercises step by step to gain in-depth familiarity	NPS will review the draft of the guides to ensure that they satisfy the AQL and	

	See CDRL A005 - Instructional and Student Guides.	with the material, and the solutions or approaches to solving each portion of the exercise.	provide feedback for improvement if needed.	Continuously throughout the period of performance
3.5	<u>4.3:</u> Export of all VMs associated with Network vulnerability, ML&AI, CSIRR, Traffic Analysis, Reverse Engineering, and Mobile Apps courses.	Export all VMs associated with the exercises in OVA format, to allow the government to instantiate the lab environment on different virtualization platforms, if necessary, to support the associated classes.	NPS will test the exported VMs on different platforms to ensure transferability.	Continuously throughout the period of performance
3.6	<u>4.6:</u> Provide the services of subject matter experts (SME) in the areas of Traffic Analysis, Reverse Engineering, and Mobile Apps to provide live support and troubleshooting during in-class resident weeks. 18 in-class resident weeks occur each year.	Immediate to 30-minute response time to trouble shoot issues for Instructors and Students. There shall be 24-hour coverage support provided by SME(s) to troubleshoot any issues within the infrastructure during in-residence class weeks, because students will be working from different countries across the globe. 18 in-residence class weeks occur each year.	Remote modifications to VM environment, phone call support to Instructors as required.	Continuously throughout the period of performance when on-site NATO classes are in session (first and last week of instruction)
3.7	<u>4.6:</u> Provide eight-hour email SME response in support of the VM infrastructure during non-in-class weeks.	8-hour response time to trouble shoot issues for Instructors and Students.	Remote modifications to VM environment, phone call or email support to Instructors as required.	Continuously throughout the period of performance when Distance Learning NATO classes are in session (other than first and last weeks of instruction)
3.8	<u>4.4:</u> Make the VM environments available for students taking the Network Vulnerability Assessment & Risk Mitigation, Cyber Incident Handling & Disaster Response, Network Traffic Analysis, Principles of Software Reverse Engineering, Mobile Applications, ML&AI for Cyber Applications, and Introduction to ML & AI courses. See CDRL A004 - VMs for All Classes.	VM environment needs to support a total of 400 students and needs to be available 96% of the time. Courses need to be updated per faculty feedback. All VM environments must be completely browser-based	NPS will test the updated VM environment two weeks prior to the beginning of each class to ensure that it aligns with the course content and objectives	Continuously through the period of performance
	<u>4.5:</u> Updated VM environments, laboratory exercises, and instructional		NPS will review the updated environments, guides, and version	Continuously throughout the period of

3.9	/student guides reflecting revisions, software updates, and course feedback. Documentation of all updates, including version history, shall be submitted to NPS. See CDRL A006 - Updates.	All laboratory environments must be updated, tested, and fully functional prior to the start of each scheduled course. Updates must address 100% of faculty and student feedback items designated as "critical" or "high priority."	documentation at least two weeks prior to course delivery. Operational testing will confirm that the environment functions correctly and aligns with course objectives.	performance, with updates and confirmation of operational functionality completed prior to each course cycle and following any major software or course content changes.
3.10	4.7: On-site instruction or technical support during NATO School classes if requested by NPS.	On-site instruction, if requested, must be performed by qualified SMEs meeting all contract requirements.	For in-person instruction, NPS or the NATO School will assess SME performance through post-course feedback forms.	Continuously throughout the period of performance

If performance falls below the AQL defined above, the Contracting Officer's Representative (COR) shall document the instance(s), coordinate with the Contracting Officer and advise the Contractor. The Contractor will be requested to review the documentation and provide a written response on how performance will be corrected in the future. Re-performance of any work for failure to perform in accordance with the specified AQL or task requirement shall be completed at the Contractor's own expense and at no additional cost to the Government.

5.0 Other Requirements for the Virtual Machines (VMs):

- The ability for instructors and students to access the exercise environment on Windows, macOS, or Linux entirely through a modern version of a common web-browser (Chrome, Firefox, Safari, or Edge).
- The VM needs to be completely browser based and shall not require students or faculty to download any software to their machines since some of the machines will be government-owned machines.
- VM environment deployment for a given class should provide minimum latency relative to the locus of class participants (Europe, Middle East, Far East Asia) with a measured response time of no greater than 90ms.
- The ability for the instructor and student to interact within a single VM in an environment simultaneously (allowing the instructor to see what the student is doing, and to allow the instructor to take control to guide the student through some portion of an exercise).
- The ability for the instructor (through the web-based UI) to push files onto some or all of the VMs in the student environments, or to pull files from some or all of the VMs in the student environments
- The ability for the instructor (through the web-based UI) to run commands and/or make configuration changes on some or all of the VMs in the student environments.
- The ability to collect performance metrics (such as time on task, and task completion rates), and to compile and present this data to aid in formative and summative assessments of individuals and classes as well as contributing to the refinement of course materials and environment

6.0 Minimum Technical Requirements:

- 6.1** Contractor shall have extensive experience in developing VMs across the security and data analysis domains within DoD.
- 6.2** VM environment developers must be SMEs in the following software tools: Ghidra, commercial IDA Pro, DRAKVUF sandbox, Elastic stack with netflow module, Elastiflow, mininet, Wireshark SiLK netflow, Splunk, ChefSpecial, Argus, Xcode, MobSF, docker, Android SDK, Android Studio, apktool, dex2jar, and drozer.
- 6.3** Experience in developing virtual lab environments for classroom use that allows students to have hands-on-experience and training using HOTzone platform.

6.4 SME in the ability to configure and deploy a large number of VMs in data centers in Europe, the Middle East and Far east Asia which require extremely redundant and reliable power, cooling, and networking.

6.5 Due to the sensitive nature of working with NATO and coalition partners, all SMEs and supporting contractors must be US citizens.

7.0 Period of Performance:

Base period: March 31, 2026 - March 30, 2027

Option 1: March 31, 2027 - March 30, 2028

Option 2: March 31, 2028 - March 30, 2029

Option 3: March 31, 2029 - March 30, 2030

Option 4: March 31, 2030 - March 30, 2031

8.0 Place of Performance:

This work will be completed at the Contractor's site. There is no need for this work to be performed at NPS. Travel to the NATO School Oberammergau (NSO) may occur once per year, if necessary (See Section 10.0: "Travel" below).

9.0 Work Week and Hours of Operation:

The Contractor shall provide services during normal working hours excluding federal holidays. Normal working hours are 0730-1630, Monday through Friday, unless requirements dictate otherwise. Exceptions can be permitted by the COR upon request and at the COR's discretion.

Following is a list of holidays observed by the Government.

<u>Name of Holiday</u>	<u>Time of Observance</u>
New Year's Day	1 January
Martin Luther King Jr. Day	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	19 June
Independence Day	4 July
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veteran's Day	11 November
Thanksgiving Day	Fourth Thursday in November
Christmas Day	25 December

If any of the above holidays occur on a Saturday or a Sunday, then such holiday shall be observed by the Contractor in accordance with the practice as observed by the assigned Government employees at the using activity.

10.0 Travel:

Travel will be in accordance with the Joint Travel Regulations (JTR) and will be reimbursed by the government on an as-incurred basis. Travel will be to perform the task in Section 3.10 above, which states the following: The Contractor shall also provide the option to deploy qualified subject matter experts (SMEs) to travel and instruct in-person at NSO, if required by NPS or the NATO School, to ensure effective course delivery and technical support

Associated Task	From/To Travel Location	Estimated Number of Trips Per Year
3.10	From: Contractor Site To: NSO, in Oberammergau, Germany	1 trip per year

11.0 Human Subject Research

Contractor personnel performing work under this contract may not support, advise, or conduct research involving human subjects.

If at any time during the period of performance of this contract the tasks involve human subject research, the Contractor shall immediately notify the Contracting Officer. The contract must be amended in accordance with DoDD 3216.02 and DFARS 252.235-7004 in the event human subject research is proposed.

12.0 Privacy Act Statement:

"Pursuant to Title 5 United States Code 552a(m)(1), the contractor and all employees of the contractor working under this contract are required to comply with the requirements of 5 U.S.C. 552a ("The Privacy Act of 1974")."

13.0 Identification of Contractor Employees:

In accordance with DFARS 211.106, there shall be a clear distinction between Government employees and service contractor employees. Service contractor employees shall identify themselves as contractor personnel by introducing themselves or being introduced as contractor personnel. Contractor personnel will be required to obtain and wear badges or other visible identification for meetings with Government personnel to provide a clear distinction between service contractor employees and Government personnel. In addition, contractor personnel shall appropriately identify themselves as contractor employees in telephone conversations and in formal and informal written correspondence. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

14.0 Non-Personal Services Statement:

Contractor employees performing services under this order will be controlled, directed, and supervised at all times by management personnel of the contractor. Contractor management will insure that employees properly comply with the performance work standards outlined in the SOW. Contractor employees will perform their duties independent of, and without the supervision of, any Government official or other Defense Contractor. The tasks, duties, and responsibilities set forth in the task order may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal policy, obligating the appropriated funds of the United States Government, overseeing the work of Federal employees, or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR). The Government will control access to the facility and will perform the inspection and acceptance of the completed work.

Requirements

Provide a hands-on training environment supported by virtual machines (VMs) that will host training modules for cybersecurity courses taught at the NATO School Oberammergau (NSO).

Section D - Packaging and Marking

MARKING OF SHIPMENTS

Marking shall be in accordance with ASTM Designation D3951 "Commercial Packaging".

PREPARATION FOR DELIVERY

Preservation, packaging and packing shall be in accordance with ASTM Designation D3951, "Commercial Packaging".

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
0002	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
0003	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA

	NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 2002	Inspection and Acceptance Location Both Destination

	Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095

Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 4003	Inspection and Acceptance Location Both Destination Instructions: SEETHEPWS DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group

Email: naoconno@nps.edu
Telephone: (216) 374-6095

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 31 Mar 2026 to 30 Mar 2027 Period of Performance From 31 Mar 2026 To 30 Mar 2027	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
0002	Delivery Period From 31 Mar 2026 to 30 Mar 2027 Period of Performance From 31 Mar 2026 To 30 Mar 2027	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
0003	Delivery Period From 31 Mar 2026 to 30 Mar 2027 Period of Performance From 31 Mar 2026 To 30 Mar 2027	1 Lot	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095

Option Line Item 1001	Delivery Period From 31 Mar 2027 to 30 Mar 2028 Period of Performance From 31 Mar 2027 To 30 Mar 2028	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 1002	Delivery Period From 31 Mar 2027 to 30 Mar 2028 Period of Performance From 31 Mar 2027 To 30 Mar 2028	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 1003	Delivery Period From 31 Mar 2027 to 30 Mar 2028 Period of Performance From 31 Mar 2027 To 30 Mar 2028	1 Lot	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
	Delivery Period From 31 Mar 2028 to 30 Mar 2029	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES

Option Line Item 2001	Period of Performance From 31 Mar 2028 To 30 Mar 2029		Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 2002	Delivery Period From 31 Mar 2028 to 30 Mar 2029 Period of Performance From 31 Mar 2028 To 30 Mar 2029	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 2003	Delivery Period From 31 Mar 2028 to 30 Mar 2029 Period of Performance From 31 Mar 2028 To 30 Mar 2029	1 Lot	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 3001	Delivery Period From 31 Mar 2029 to 30 Mar 2030 Period of Performance From 31 Mar 2029 To	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095

	30 Mar 2030		
Option Line Item 3002	Delivery Period From 31 Mar 2029 to 30 Mar 2030 Period of Performance From 31 Mar 2029 To 30 Mar 2030	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 3003	Delivery Period From 31 Mar 2029 to 30 Mar 2030 Period of Performance From 31 Mar 2029 To 30 Mar 2030	1 Lot	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 4001	Delivery Period From 31 Mar 2030 to 30 Mar 2031 Period of Performance From 31 Mar 2030 To 30 Mar 2031	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
	Delivery Period From 31 Mar 2030 to 30 Mar 2031	1 Group	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE

Option Line Item 4002	Period of Performance From 31 Mar 2030 To 30 Mar 2031		DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095
Option Line Item 4003	Delivery Period From 31 Mar 2030 to 30 Mar 2031 Period of Performance From 31 Mar 2030 To 30 Mar 2031	1 Lot	Place of Performance DoDAAC: N62271 CountryCode: USA NAVAL POSTGRADUATE SCHOOL RECEIVING OFFICE BLDG 349, 1988 LAKE DEL MONTE DRIVE MONTEREY, CA 93943-5301 UNITED STATES Nora O'Connor, Faculty Associate - Research, Energy Academic Group Email: naoconno@nps.edu Telephone: (216) 374-6095

Section G - Contract Administration Data

REQUIREMENT POINT OF CONTACT (POC)

The NAVSUP Fleet Logistics Center San Diego will retain post award administration of this contract. Contact the contract specialist if any post award delivery delays, performance problems, or other issues arise during the performance of this contract.

CONTRACTING OFFICE POINT OF CONTACT (POC)

Noni Arcilla

Contract Specialist

NAVSUP Fleet Logistics Center San Diego (FLCSD)

3985 Cummings Road, Bldg. 116, 3rd Floor

San Diego, CA 92136-4200

E-mail: noni.p.arcilla.civ@us.navy.mil

Phone: (619) 556-5662

REQUESTING ACTIVITY POC

TBD

CONTRACTING OFFICER'S REPRESENTATIVE (COR)

TBD

CONTRACTOR POC

TBD

METHOD OF INVOICING:

Invoices for materials resulting from this order shall be submitted electronically through Wide Area Work Flow (WAWF). IAW DFARS 252.232-7003. The Contractor shall upload all applicable inspection/acceptance documentation to the WAWF system as an attachment. Failure to upload it may result in a delay to invoice payment processing.

iRAPT (Invoicing, Receipt, Acceptance and Property Transfer formerly known as WAWF) has been designated as the Department of Defense standard for electronic invoicing and payment.

iRAPT POINT OF CONTACT: To comply with the above initiative, you must register in iRAPT and have the appropriate CAGE Code activated. Your System for Award Management (SAM) Electronic Business Point of Contact (EBPOC) is responsible for activating the company's CAGE Code in iRAPT by calling 1-866-618-5988. Once the Recipient's CAGE code is activated, the SAM EBPOC will self-register in iRAPT and follow the instructions for a group administrator. After the CAGE Code is set-up on iRAPT, any additional persons responsible for submitting payment requests must self-register in WAWF.

DO NOT SEND INVOICES TO THE NAVSUP FLC SAN DIEGO CONTRACTING DEPARTMENT

PAYMENT INSTRUCTIONS:

PAYMENT: The Government anticipates paying fully certified invoices on a Net 30-day basis. Payment of fully certified invoices for partial deliveries of material is hereby authorized. Distribution of payment will be made by Electronic Funds Transfer (EFT) to the contractors account established in the CCR database. It is the responsibility of the contractor to review such accounts to ensure that payment has been reviewed.

NOTE: The Contractor shall upload all applicable field reports. Inspection/Acceptance documentation to the to WAWF as an attachment. Failure to upload the documentation may result in the delay of invoice and payment processing.

SALES TAX EXEMPTION: The Contractor is hereby advised that the United States Government and Agencies are exempt from State and Local Government Tax by virtue of Article 6 of the United States Constitution. No exemption certificate is required.

UNIT PRICES (OCT 2001)

Contractor unit prices, when incorporated into a Government contract, will be released under the Freedom of Information Act (FOIA) without further notice to the contractor submitter. If the Contractor takes issue with the release, it should submit its proposal data with the appropriate legends and explain in detail why such data cannot be released as a public record under the Freedom of Information Act.

REVIEW OF AGENCY PROTESTS

The contracting activity, Fleet Logistics Center San Diego (FLCSD) will process agency protests in accordance with the requirements set forth in FAR 33.103(d). Pursuant to FAR 33.103(d)(4), agency protests may be filed directly with the appropriate reviewing authority; or, a protester may appeal a decision rendered by a contracting officer to the reviewing authority.

The reviewing authority for FLCSD is the Director, Regional Contracts Department, Fleet Logistics Center San Diego at 3985 Cummings Road, Bldg. 116, San Diego, CA 92132-0060. Agency procurement protests should clearly identify the initial adjudicating official, i.e., the "contracting officer" or "reviewing official." Offerors should note this review of the Contracting Officer's decision will not extend GAO's timeliness requirements. Therefore, any subsequent protest to GAO must be filed within 10 days of knowledge of initial adverse agency action.

SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT CONTRACTOR - RELEASE OF OFFEROR INFORMATION

NAVSUP Fleet Logistics Center San Diego (FLCSD) may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the government or information already in the possession of the government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the government's AbilityOne Program support contractor personnel. AbilityOne will have a Non-Disclosure/Non-Use Agreement in place with the Government in order to comply with DFARS 252-227-7025. The offeror retains the right to engage AbilityOne in a non-disclosure agreement pursuant to DFARS 252.227-7025(b)(5)(iv).

CONTRACT ADMINISTRATION PLAN (CAP)

FOR FIXED PRICE CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications, or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:
 - a. All pre-award duties such as solicitation, negotiation and award of contracts.
 - b. Any information or questions during the pre-award stage of the procurement.
 - c. Freedom of Information inquiries.
 - d. Changes in contract terms and/or conditions.
 - e. Post award conference.
2. The Contract Administration Office (CAO) is responsible for matters specified in the FAR 42.302 and DFARS 42.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.
3. The paying office is responsible for making payment of proper invoices after acceptance is documented.
4. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

CONTRACTING OFFICER'S REPRESENTATIVE (COR)

TBD

- a. Technical Interface
 - (1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations /clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.
 - (2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.
- b. Contract Surveillance
 - (1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

- (2) The COR shall monitor contractor performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.
- (3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.
- (4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

- (1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.
- (2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR must be cognizant of the invoicing procedures and prompt payment due dates detailed elsewhere in the contract.
- (3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.
- (4) The COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications. The COR is responsible for developing the statement of work for change orders or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

e. Administrative Duties

- (1) The COR shall take appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.
- (2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.
- (3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to insure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

5. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

- a. Identify contractor deficiencies to the COR.
- b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.
- c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.
- d. Identify contract noncompliance with reporting requirements to the COR.
- e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- f. Review invoices and provide the COR with recommendations to facilitate COR certification of the invoice.
- g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2-in-1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N00244</u>

Admin DoDAAC	<u>N00244</u>
Inspect By DoDAAC	<u>N/A</u>
Ship To Code	<u>N62271</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N62271</u>
Service Acceptor (DoDAAC)	<u>N62271</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Name	Email	Phone	Role

Contract Admin	ContractAdmin@nps.edu	831-656-6128	Acceptor / LPO
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(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Service Contract Act WD #: 2015-5633

Non-Standard Service Description(s)

State: California

Counties: Monterey

SCA Wage Determination

Revision Number: 25

Service(s)

Published Date: Dec 2, 2025

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	(Jan 2025)	Deviation 2025-O0004	(Mar 2025)
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Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

- (4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).
- (6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).
- (b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- ☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).
- ☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).
- ☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).
- ☐ (6) [Reserved].
- ☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).
- ☐ (11)
- (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).
- ☐ (ii) Alternate I (Dec 2023) of 52.204-30.
- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).
- ☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☒ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-7.
- ☒ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)

☐ (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22)

☐ (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

☒ (26)

☐ (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35)

☐ (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☒ (36)

☐ (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☒ (39)

☐ (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

[] (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

[] (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

[] (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

[] (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

[] (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

[] (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

[] (ii) Alternate I (Jan 2017) of 52.224-3.

[] (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

[] (ii) Alternate I (Oct 2022) of 52.225-1.

[] (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (Jan 2025) of 52.225-3.

[] (iv) Alternate III (Feb 2024) of 52.225-3.

[] (v) Alternate IV (Oct 2022) of 52.225-3.

[] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

[X] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

[] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

[] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

[X] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

[] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

[] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[X] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

[] (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

[] (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

- (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii)
- (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).
- (B) Alternate I (Dec 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [Reserved]
- (x) [Reserved]
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi)
- (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii)
- (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
- (B) Alternate I (Jan 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years and 6 months.

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008)

(Oct 2022) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition.* Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

Section J - List of Attachments

Exhibit A: Contract Data Requirements List (CDRL) contains six Exhibit Line-Item Numbers (ELINs), with each being its own document:

- CDRL A001 - VMs for Traffic Analysis Class
- CDRL A002 - VMS for Software Engineering (SWE) Class
- CDRL A003 - VMs for Mobile Apps Class
- CDRL A004 - VMs for All Classes
- CDRL A005 - Instructional and Student Guides
- CDRL A006 - Updates

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Attachment 1 -- Pricing	Cost Data Summary		20 Jan 2026
02	Attachment 2 - OPPD			22 Jan 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	Dec 2019		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7000	Buy American--Balance of Payments Program Certificate.	Feb 2024		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	(May 2024)	Deviation 2025-O0004	(Mar 2025)
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OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* *[Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
==	==	==

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==

==	==	==
==	==	==

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.
==
==
==

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin

==	==
==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

- ☐ Sole proprietorship;
- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR1.6049-4;
- ☐ Other ____.

(5) *Common parent.*

- ☐ Offeror is not owned or controlled by a common parent;
- ☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

- (i) It ☐ is, ☐ is not an inverted domestic corporation; and
- (ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

- (i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or

subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

DFARS Clauses Incorporated by Full Text

252.239-7009 Representation of Use of Cloud Computing.

(Sep 2015)

REPRESENTATION OF USE OF CLOUD COMPUTING (SEP 2015)

(a) *Definition.* "Cloud computing," as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

(b) The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

(c) *Representation.* The Offeror represents that it-

☐ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

☐ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR 52.212-1: INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

FAR 52.212-1(b) is tailored to include the following:

1. The Government contemplates the award of a commercial, firm fixed price (FFP) purchase order from this solicitation. The resultant purchase order is for the development of a Virtual Machine (VM) environment that will host training modules for cybersecurity courses taught at the NATO School Oberammergau (NSO). All required tasks and deliverables for this service are in the Performance Work Statement (PWS) in Section C of this solicitation.

2. This is a Total Small Business Set-Aside. As a result, to be considered for award, the contractor must be registered as a small business in the System for Award Management (SAM) under the North American Industry Classification System (NAICS) code applicable to this procurement, which is 611710: Educational Support Services.

3. Award shall be based on a Tradeoff source selection process in accordance with the procedures in Federal Acquisition Regulation (FAR) subpart 13.5: Simplified Procedures for Certain Commercial Products and Commercial Services, and consistent with the Period of Performance (POP) dates in the resultant purchase order, which consists of one base year, followed by four (4) option years and an option to extend services for an additional six (6) months.

4. Questions regarding this procurement must be submitted via email to the contract specialist Noni Arcilla: noni.p.arcilla.civ@us.navy.mil. The Government will make every attempt to answer questions in a timely manner. All questions and answers will be posted for viewing by all other potential contractors. **The deadline to submit questions is THREE (3) business days prior to the deadline of quote submission identified in #5 below, by 1:00 PM Pacific Standard Time (PST).**

5. Quotes must be submitted via email to the contract specialist Noni Arcilla: noni.p.arcilla.civ@us.navy.mil. The deadline to submit quotes is February 9, 2026 at 9:00 AM, Pacific Standard Time (PST). The Government may not consider any quotations submitted after this date and time.

6. To be considered eligible for award, each contractor must submit a single quote that contains a complete and accurate response to the requirements of this solicitation. The Government will not evaluate more than one quotation per quoter.

7. **Format of Quote:** Contractors shall submit their quotation in Volumes using the following format:
 - Volume I - Technical
 - Volume II - Past Performance
 - Volume III - Price

Volume Name	Page Limit
Volume I - Technical	No more than ten (10) pages, exclusive of table of contents, any figures, and the Solicitation Cover Sheet
Volume II - Past Performance	No more than two (2) pages, exclusive of Offeror's Past Performance Data - Attachment #2

Volume III - Price	Unlimited
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- 7.1. Quotations must be typed on standard 8.5" x 11" paper, single-spaced, with no less than one-inch margins on all sides. The font size shall be no less than Times New Roman, Size 10 font, except for section headers /titles and the Cover Sheet.
- 7.2. The Government reserves the right to award a purchase order without discussions if the Contracting Officer determines that discussions are not necessary. Accordingly, it is *strongly suggested* that each initial quotation be submitted on the most favorable technical terms and price that the contractor can submit to the Government.
- 7.3. The information described below shows what the contractor shall include in each Volume

8. Volume I - Technical

Volume I - Technical shall consist of the following three (3) sections which shall clearly be labeled:

- Solicitation cover sheet
- Subfactor (1): Technical Approach
- Subfactor (2): Subject Matter Experience

8.1. Solicitation cover sheet

The contractor shall complete and submit Standard Form (SF) 1449: Solicitation/Contract/Order for Commercial Products and Commercial Services, with the appropriate blocks completed. The following are the blocks the contractor shall complete: Blocks 17a, 30a, 30b, 30c. In addition, the contractor shall include the following: Name of Company, Point of Contact Information (including name, email, and phone number), Physical Address, CAGE Code, and the Unique Entity Identifier (UEI).

8.2. Subfactor (1): Technical Approach

The contractor shall provide a narrative explanation of how all requirements in Section 3.0: "Tasks", Section 4.0: "Deliverables", and Section 5.0: "Other Requirements for the Virtual Machines (VMs)" will be fulfilled. This technical approach shall demonstrate that the contractor can accomplish all tasks and provide all required deliverables in a technically competent and timely manner, with minimum risk to the Government. The approach shall provide a complete analysis of the performance requirements and explain the processes, best practices and other methods the contractor will use to meet each requirement stated in the PWS. The Technical Approach shall be specific, detailed, and complete to clearly and fully demonstrate that the contractor has a thorough understanding of the requirements in the PWS.

8.3. Subfactor (2): Subject Matter Experience

The contractor shall provide material demonstrating that their proposed personnel collectively meet or exceed ALL the Minimum Technical Requirements in Section 6.0: "Minimum Technical Requirements" of the PWS.

9. Volume II - Past Performance

The contractor shall provide a narrative summary of relevant past contracts completed within the last three (3) years from the date of submission of the contractor's quotation, that demonstrate the capability to successfully perform requirements similar in scope, complexity, and size to this contract. Past performance information shall include up to three (3) of the most relevant contracts performed within this timeframe. These contracts may be with Federal agencies, state or local governments, and/or commercial customers, and must be similar or greater in scope, magnitude, and complexity, when compared to the requirements described in this solicitation.

For each referenced contract, the contractor shall submit a Contractor Performance Assessment Report (CPAR), if available. If a CPAR is not available, the offeror shall provide the Offeror's Past Performance Data (OPPD) using Attachment #2 to this solicitation. These documents must be submitted as part of Volume II.

10. Volume III - Price

The contractor shall complete the price of each item listed in Attachment 1: Pricing, under all worksheets. The worksheets correspond to a CLIN in Section B, which is labeled in the attachment. For each CLIN worksheet in the attachment, the sum of the prices of all the items in that worksheet will equal the total price of that CLIN in Section B. The CLINs referenced in Attachment 1 only refers to CLINs 0001, 1001, 2001, 3001, and 4001 in Section B.

Furthermore, the contractor shall provide the price of the Travel CLINs in Section B: 0002, 1002, 2002, 3002, and 4002. Travel is referenced in Section 10.0 of the PWS in Section C. The number of trips per year will be one (1), so the price of these CLINs shall reflect that.

In addition, the contractor shall provide the price of the option to extend services for six (6) months, which may be exercised at the conclusion of Option Year 4 (OY4). The total price of the 6-month extension shall not exceed half of the total price of OY4. If the price for this 6-month extension is not provided, then it is assumed that the total price for this 6-month extension is half of the total price of OY4.

NOTE: CLINs 0003, 1003, 2003, 3003, and 4003 in Section B are Not Separately Priced (NSP), as they refer to Contract Data Requirements Lists (CDRLs) in Section J.

CONTRACTORS SHOULD NOT SUBMIT ANY ADDITIONAL INFORMATION WITH THEIR QUOTE.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

Section M - Evaluation Factors for Award

FAR 52.212-2 EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

FAR 52.212-2(a) is tailored to include the following:

1.0. BASIS FOR AWARD

1.1. This requirement is a Total Small Business Set-Aside, conducted in accordance with FAR subpart 13.5: Simplified Procedures for Certain Commercial Products and Commercial Services and FAR part 12: Acquisition of Commercial Products and Commercial Services. A single firm-fixed-price (FFP) purchase order award will be established with the responsible contractor whose quotation conforms to all requirements outlined in this solicitation and is most advantageous to the Government based on the best value determination. The Contracting Officer will determine best value to the Government using the Tradeoff process.

1.2. To ensure an efficient and timely evaluation, upon receipt of quotations, the Government reserves the right to employ a phased evaluation. The Government will first review the three lowest-priced quotations for evaluation of Factor I: Technical. If all three are rated less than Acceptable using the rating table at Table 1 below, the Government will then evaluate the next three lowest-priced quotations. This process will continue in successive batches of three until a technically acceptable quotation is identified for award.

1.3. The following factors will be used to evaluate quotations:

- Factor I: Technical
 - o Subfactor (1): Technical Approach
 - o Subfactor (2): Subject Matter Experience
- Factor II: Past Performance
- Factor III: Price

All evaluation factors other than price, when combined, are significantly more important than price.

1.4. The contractor must submit ONE quotation in accordance with the directions set forth in Section L of this solicitation. The Government will not evaluate more than one quotation per contractor.

2.0. Evaluation of Factor I: Technical

- Subfactor (1): Technical Approach

The Government will evaluate the contractor's Technical Approach to determine the extent to which it demonstrates a clear, specific, and complete understanding of the requirements outlined in Section 3.0: "Tasks", Section 4.0: "Deliverables", and Section 5.0: "Other Requirements for the Virtual Machines (VMs)" of the Performance Work Statement (PWS). Evaluation will consider how well the contractor explains how each task, deliverable, and all requirements in the PWS will be fulfilled; the feasibility and effectiveness of proposed methods and best practices, the contractor's ability to perform the work in a timely and technically competent manner, and the degree to which the approach minimizes risk to the Government.

- Subfactor (2): Subject Matter Experience

The Government will evaluate proposed personnel based on their experience and qualifications to determine if they meet or exceed the minimum technical requirements outlined in Section 6.0: "Minimum Technical Requirements" of the PWS. Emphasis will be placed on the relevance and adequacy of their background to successfully perform the assigned tasks.

2.1. Ratings for Factor I: Technical, and each of its Subfactors

The following Table 1 of Adjectival Ratings/Descriptions will be used for the Technical/Risk Rating for Factor I and each of its subfactors. The overall Factor I (Technical) rating will be determined by evaluating the ratings of each of its subfactors. The overall rating will be used for tradeoff analysis.

Table 1: Combined Technical/Risk Rating Method

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high

Only quotes that are rated Acceptable or HIGHER in Factor I: Technical will be evaluated for Factor II: Past Performance.

3.0. Evaluation of Factor II: Past Performance

The Government will evaluate the quality of the Offeror's past performance deemed relevant to the requirements of this solicitation. The Government will use information submitted by the offeror and any other sources of information available to assess past performance. The following Table 2 will be used to determine the rating of Factor II: Past Performance:

Table 2: Performance Confidence Assessments Rating Method

Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Only quotes that are rated "Neutral Confidence" or higher for Factor II: Past Performance will be evaluated for Factor III: Price.

4.0. Evaluation of Factor III: Price

The Government will evaluate the total price for price reasonableness. The Government will evaluate the price of the base period, and the price of all option periods. Evaluation of options shall not obligate the Government to exercise the option(s). Finally, the Contracting Officer must determine that the total price, inclusive of options, is fair and reasonable before proceeding to award phase.

5.0. Responsibility Determination and Supplier Performance Risk System (SPRS)

Prior to contract award, the Contracting Officer will conduct a responsibility determination in accordance with FAR 9.104-1 and verify the prospective awardee's performance rating in the Supplier Performance Risk System (SPRS).

5.1 Responsibility Determination

The contracting officer may either make a responsibility determination without requesting any information from an offeror or require the offeror provide information to substantiate that it satisfies the general responsibility standards of FAR 9.104-1. The information requested from an offeror will be specific to that offeror. For example, an offeror that the contracting officer is less familiar with may be required to provide information not required from another offeror. The contracting officer may consider an offeror's inability to promptly respond to a request for information as an indication the offeror is non-responsible since FAR 9.103(c) obligates prospective contractors to affirmatively demonstrate their responsibility.

When the contracting officer requests responsibility information, the contracting officer's request, the offeror's response, and all related communications between the Government and offeror are solely for the purpose of determining whether the offeror is responsible. These communications will not constitute discussions within the meaning of FAR 15.306 since the offeror will not be given an opportunity to revise its proposal.

While the contracting officer may require the offeror to provide any information related to the standards at FAR 9.104-1, the following are examples of information that may be required:

1. A demonstration, through information such as bank references and financial information (e.g., most current annual balance sheet), that the offeror has adequate financial resources to perform the contract.
2. A demonstration the offeror's price is not so low as to call into question the offeror's capability to successfully perform the contract.
3. Past performance information on recent contracts for items similar to this requirement, including a point of contact for the Government activity or commercial entity customer.
4. A demonstration the offeror can comply with the required performance schedule, including a transition plan.

5. A demonstration the offeror has, or can obtain, the organizational, management and technical skills to successfully perform. This demonstration may involve the particular personnel and approaches available to the offeror.
6. The offeror's quality assurance procedures.
7. The equipment and facilities the contractor will use.
8. Information demonstrating a proposed subcontractor satisfies the FAR 9.104-1 general standards of responsibility.
9. Completion of the Section K Certifications and Representations contained in this solicitation.
10. A demonstration the offeror isn't an inverted domestic corporation.
11. Certificate of registration of the company.
12. A demonstration the offeror has all registrations, permits and licenses required to perform the contract in the locations for which the offeror is proposing.
13. In the event the offeror is a joint venture, a Memorandum of Association which indicates who has the authority to bind the company.

Nothing in this provision limits the contracting officer's discretion to rely on information available from other sources (e.g., past performance data bases, discussions with other entities familiar with the offeror) or to use any other technique described FAR 9.1 when determining whether the offeror satisfies the FAR 9.104-1 general responsibility standards.

5.2 Supplier Performance Risk System (SPRS)

The Contracting Officer will use Supplier Performance Risk System (SPRS) in the evaluation of the Quoter or Offeror's performance. SPRS retrieves item, price, quality, delivery, and contractor information on contracts from Government reporting systems to develop risk assessments.

SPRS is available at <https://piee.eb.mil/>

(End of provision)